

BRIEF IN SUPPORT OF MOTION TO MODIFY CUSTODY, PARENTING TIME, AND SUPPORT – DE NOVO HEARING

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

Case No.: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff
v.
EMILY WATSON, Defendant

I. INTRODUCTION

This matter involves ongoing parenting time interference, misuse of protective orders, and a breakdown in co-parenting that severely impacts the best interests of the minor child, LDW. Plaintiff seeks modification of custody and parenting time, a recalculation of child support, and consolidation of all related issues into a single De Novo hearing under MCR 3.211.

II. LEGAL STANDARD

Pursuant to MCL 722.27(1)(c), the court may modify a custody or parenting time order if it is in the best interests of the child. A party seeking modification must establish proper cause or a change of circumstances under *Vodvarka v. Grasmeyer*, 259 Mich App 499 (2003). In cases involving parenting time or co-parenting interference, the threshold for modification is met under *Pierron v. Pierron*, 486 Mich 81 (2010).

III. ARGUMENT

A. Proper Cause and Change in Circumstances Exists

The following changes have occurred since the last custody/parenting time order:

- Withholding of parenting time from March 26 to May 6, 2024 and again from April 6 to May 2, 2025.
- Weaponization of a PPO to generate false violations during parenting exchanges.
- Ongoing alienation behavior by Defendant, including instructing LDW to call another man 'dad'.
- Plaintiff's consistent, structured parenting time demonstrating an intact custodial environment.

B. Best Interests Factors Strongly Support Plaintiff's Position

Under MCL 722.23, factors (a), (b), (c), (d), (h), (j), and (k) support modification:

- (a) Plaintiff provides love, affection, and guidance.
- (b) Plaintiff provides food, clothing, and medical attention.
- (c) Stable, permanent household with educational tools.
- (d) Length of time the child has lived in a stable environment (ECE).
- (h) Home, school, and community permanence with Plaintiff.
- (j) Willingness to support relationship with the other parent – Defendant has refused.
- (k) Domestic violence and PPO misuse by Defendant to manipulate custody.

C. Consolidation is Judicially Efficient and Legally Appropriate

MCR 3.211(B)(5) allows for consolidation of custody, parenting time, and support issues for hearing. A De Novo hearing is pending in connection with related parenting matters. Plaintiff respectfully requests consolidation to avoid piecemeal litigation and to ensure due process is honored.

IV. CONCLUSION

Plaintiff has demonstrated clear proper cause and a change in circumstances that warrant a hearing on all issues. Modification is in the best interests of the minor child, and Plaintiff respectfully requests the Court consolidate these matters for resolution at the De Novo hearing.

Respectfully submitted,

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